

23SMCV06010 23SMCV06010

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The court has now read even the supplemental document

Hart-Flaherty has filed. For the reasons

stated earlier, the court does not agree with Hart-Flaherty. In brief, Hart-Flaherty claims that the property from which plaintiff is trying to evict her was fraudulently taken. She asserts that in fact she owns

the property, or at least has an ownership interest in it. That interest stems from a marriage settlement between her and her former spouse, Flaherty. The agreement, which purports to give her a 50% interest in the property, was (to the best of this court's knowledge) never formally recorded and title never formally transferred; title remained in

Flaherty's name alone. According to

plaintiff, Flaherty later signed a deed of trust in support of a loan. However, Hart-Flaherty contends that the documents surrounding that transaction were forged or otherwise falsified, even

though they were recorded. Later, the

trustee foreclosed on the loan and the property was sold. Plaintiff now holds written title and seeks to evict Hart-Flaherty, who resides there.

Because Hart-Flaherty claimed actual ownership of the property, the court refused plaintiff's attempts to pursue this case along a regular UD timeline. Instead, this case, which was

filed at the very end of 2023, has proceeded along a normal litigation

timeline. During the interim, there have

been a number of other cases involving plaintiff, Flaherty, and

Hart-Flaherty. The cases largely

concerned a nearby property in which Hart-Flaherty is not claiming ownership. But the issue in that case involved an easement held in favor of the property here at issue. Hart-Flaherty attempted to intervene in that case on the ground that she owned the property holding the easement

rights. That request was rejected on the

merits because the court found that in fact she did not hold such ownership

rights; her claim was found to be insufficient to overcome the very strong

presumption favoring written title.

There is another case that originated in bankruptcy that was also adjudicated against Hart-Flaherty that is now pending before the Supreme Court in that Hart-Flaherty has filed a petition for a writ of certiorari upon which the Court has not yet ruled. In the meantime, the court has set the UD case for trial. Plaintiff contends that the issue of ownership has been resolved and is not a part of the instant case.

The court must divide two questions. The first is whether Hart-Flaherty in fact owns the property. To that end, the court believes that prior courts have adjudicated the question and it has been resolved against her, leading to collateral estoppel. The court will, however, review and hear whatever evidence Hart-Flaherty has of her actual ownership and consider it given that those resolutions appear to have been on motion rather than full trial. At the end of the day, if there is truly clear and convincing evidence (which is the standard to challenge written title) that she holds title, the court will not dismiss it out of hand. But that is different from evidence that Flaherty was defrauded out of his ownership or things of that ilk. This first issue goes to Hart-Flaherty's personal ownership in the property. She has had well over two years to litigate the case on that question, and the court will not delay further, but it will hear the evidence if she has it.

The second issue is whether there was fraud concerning the transactions with Flaherty. As the court has previously explained, were Flaherty attempting to litigate the question, he would have certain rights to attempt to establish that ownership to the extent not already adjudicated elsewhere. And indeed, he was named as a defendant in this case but elected to default. The court knows he was aware of this case because he was present on the phone during various hearings involving Hart-Flaherty. Because he is in default, he cannot assert his rights; that was an election that he made, and Hart-Flaherty has no right to challenge it. Under the law, Hart-Flaherty's rights are very circumscribed when the argument is that although she might not own the property, there are flaws in plaintiff's title. Generally speaking, in unlawful detainer actions the defendant will not be heard to challenge the plaintiff's title on the theory that another party really is the true owner if the title appears regular on its face. Hart-Flaherty will not be able to make that

argument either unless she is able to produce as a live witness the notary who Hart-Flaherty claims perjured herself in notarizing a document that in fact was never signed and that plaintiff was aware of the fraud and participated in it. If the notary actually appears in court and so states, and if there is evidence that plaintiff here was a part of that fraud, the court will not reject that out of hand either. If Hart-Flaherty cannot do that, though, then that is not going to be before the court.

The bottom line is that Hart-Flaherty's real problem is Flaherty, not the court, and not even plaintiff. Flaherty should have changed title on the property after the marriage settlement, but he did not do so. Flaherty should have brought the issue to the attention of the potential lenders at the time, but he did not do so. Flaherty should have challenged plaintiff's ownership in the instant case if he felt he was defrauded out of the property and that the deed was forged, but he did not do so. At this point, the court has done all it will do. The UD case will go to trial. Because the court is presently engaged in another trial, this case will begin at 2:30 today. (The jury ought to begin deliberating in that case by lunch.)